Consulting Agreement: CloudNine Consulting (VEN-004)

SAMPLE DATA – NOT A REAL CONTRACT

1. Parties

This Consulting Agreement is made between Orchestara Demo Pvt Ltd ("Client") and CloudNine Consulting ("Consultant"), registered in the Client's vendor master under Vendor ID VEN-004. The Client and the Consultant are together referred to as the "Parties". This Agreement takes effect when signed by both Parties.

2. Scope

The Consultant shall provide IT consulting services to the Client as described in written work requests. The Consultant shall perform the services with professional skill and care. The Consultant shall assign senior or junior consultants as set out in each work request.

3. Pricing

The rate for a senior consultant is ₹3,500 per hour. The rate for a junior consultant is ₹2,000 per hour. Only hours actually worked and recorded may be billed.

4. Payment Terms

Payment is due within 60 days of the invoice date. Each invoice must reference VEN-004 and include a timesheet showing the hours worked by each consultant. The Client may withhold payment for any disputed portion of an invoice until the dispute is resolved.

5. Freight and Delivery

No freight applies under this Agreement. Travel expenses are reimbursed at actual cost only, and only when supported by receipts. Expenses without receipts shall not be reimbursed.

6. Taxes

The rates stated in this Agreement are exclusive of applicable indirect taxes. Applicable taxes shall be shown separately on each invoice as required by law. Each Party is responsible for its own income taxes.

7. Termination

Either Party may terminate this Agreement by giving written notice to the other Party. The Client may terminate immediately if the Consultant commits a material breach that is not remedied within a reasonable period after written notice. Termination does not affect payment for services already performed.

8. Confidentiality

The Consultant shall keep confidential all non-public information about the Client's systems, data and business that it learns during the engagement. Such information may be used only for performing this Agreement. This obligation continues after the Agreement ends.

9. Dispute Resolution

The Parties shall first try to resolve any dispute through good-faith discussion between their authorised representatives. If the dispute is not resolved, it may be referred to arbitration under Indian law. This Agreement is governed by the laws of India.